

24STCV12248 24STCV12248

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Case Number: 24STCV12248 Hearing Date: July 17, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

JASMINE

DOMINGUEZ, et al.,

Plaintiff,

vs.

ASMS, LLC, et al.,

Defendants.

Case No.:

24STCV12248

Hearing Date:

July 17, 2026

Hearing Time:

2:00 p.m.

[TENTATIVE] ORDER RE:

MOTION FOR AN ORDER APPROVING SETTLEMENT OF
CLAIMS BROUGHT PURSUANT TO THE PRIVATE ATTORNEYS GENERAL ACT OF 2004

Background

On

May 15, 2024 Plaintiffs Jasmine Dominguez

("Dominguez"), individually and on behalf of the State of California/Other

Aggrieved Employees under the Private

Attorneys General Act, California Labor Code section 2698

et seq. ("PAGA"),

and Keila Dominguez (jointly, "Plaintiffs"), filed this action against

Defendants ASMS, LLC ("ASMS"), Aspen Healthcare Services, LLC, And Aspen

Skilled Healthcare, Inc. (collectively, "Defendants") alleging thirteen causes

of action for (1) failing to pay overtime wages, (2) failing to pay minimum

wages, (3) meal period violations, (4) rest break violations, (5) sick leave

violations, (6) failing to pay/timely pay wages, (7) failure to pay wages owed

at separation, (8) failure to provide accurate wage statements, (9) failure to

indemnify necessary expenses, (10) employment record violations, (11) violation of the PAGA, (12) unfair business practices, and

(13) wrongful forced leave.

Dominguez

and ASMS stipulate a Settlement Agreement to resolve the PAGA cause of action.

Legal

Standard

Pursuant

to Labor Code section 2699, subdivision (s)(2),

"[t]he superior court shall review and approve any settlement of any civil

action filed pursuant to this part. The proposed settlement shall be submitted

to the agency at the same time that it is submitted to the court." This

requirement serves to "ensur[e] that any negotiated resolution is fair to those

affected." ((Williams v. Superior Court (2017) 3 Cal.5th 531, 549.)

The

Court notes that, although there is no statutory or common law standard for approval of a PAGA settlement, the standard used for approval of class action settlements is instructive. “[A] presumption of fairness exists where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” ((Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1802.) The last factor, small percentage of objectors, is inapplicable to PAGA claims. ((See Arias v. Superior Court (2009) 46 Cal.4th 969, 984-985 [rejecting the argument that representative actions under PAGA violate the due process rights of “nonparty aggrieved employees who are not given notice of, and an opportunity to be heard”].) Additional factors to consider include the strength of a plaintiff’s case, the risk, expense, complexity and likely duration of further litigation, the amount offered in settlement, the extent of discovery completed, and the experience and views of counsel. ((See Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 128.)

Discussion

The parties agreed to a gross settlement amount of \$107,500.00. (Ex. A, Settlement Agreement, § I, ¶ 8.) Dominguez’s counsel, Zorik Mooradian (“Mooradian”), attests that “[t]he Gross PAGA Settlement Amount of \$107,500 represents a meaningful recovery relative to the risks, defenses, and discretionary reductions applicable to PAGA penalties.” (Mooradian Decl., ¶ 36.) As required by PAGA, before filing suit, “Plaintiff served a Notice of Violations pursuant to the California Private Attorneys General Act (‘PAGA’) on Defendant ASMS, LLC and other parties and the California Labor & Workforce Development Agency (‘LWDA’). This Notice of Violations alleged that Defendant committed wage and hour violations.” (Ex. A, Settlement Agreement, § II, ¶¶ 1-2.)

Of the gross settlement amount, up to forty percent, or \$43,000.00, will be paid to counsel for their attorney fees, and no more than \$18,000 will be paid for “Attorneys’ Expenses pursuant to Declaration by PAGA Counsel, incurred in prosecuting the PAGA claims.” (Ex. A, Settlement Agreement, § III, ¶ 4b.) Mooradian

attests that “[a]s to the attorneys’ fees, a retainer agreement was executed on July 18, 2023.” (Mooradian Decl., ¶ 37.) Mooradian explains the rates the three attorneys who worked on the case charge, stating that “[t]he billable hours, when multiplied by the respective hourly rates, amount to \$68,305.00 in fees, less than requested \$43,000.00. Moreover, the stated billable rates are reduced rates to those of the Laffey Matrix (for attorneys of like experience and years of practice in Los Angeles County). The requested fees are 63% of the billable hours, without consideration of a multiplier or higher Laffey attorney fee rates.” (Ibid.)

The Court finds this request reasonable and in line with other PAGA attorney fee requests. “[W]hen an attorney fee is awarded out of a common fund preserved or recovered by means of litigation [citation], the award is not per se unreasonable merely because it is calculated as a percentage of the common fund.”

(See *Laffitte v. Robert Half International Inc.* (2016) 1 Cal.5th 480, 486.)

Mooradian also declares that the requested attorney expenses are \$9,622.13, which reflects a lower amount than in the Settlement Agreement. .” (Mooradian Decl., ¶ 18.) Given the agreement’s language of “up to \$18,000 shall be paid...” (see Ex. A, Settlement Agreement, § III, ¶ 4b) the Court finds this proper. Dominguez will also “receive up to \$5,000.00 in enhancement or incentive award for her participation as the PAGA representative on her behalf and on behalf of the remaining Aggrieved Employees.” (Ex. A, Settlement Agreement, § III, ¶ 4c.)

To the LWDA and Aggrieved Employees, the LWDA will receive 75% and Aggrieved Employees will receive 25%,^[1]

which “[i]t is estimated that the LWDA Payment will total Twenty-Five Thousand Eight Hundred Seventy-Five Dollars (\$25,875). It is estimated that the Individual PAGA Payments will total Eight Thousand Six Hundred Twenty-Five Dollars (\$8,625).” (Ex. A, Settlement Agreement, § III, ¶ 4a(1)-(2).) To calculate how much each aggrieved employee will receive, the Administrator will “(a) divid[e] the amount of the Aggrieved Employees’ 25% share of PAGA Penalties by the total number of PAGA Period Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiply[] the result by each Aggrieved Employee’s PAGA Pay Periods.” (Id., at ¶ 4a(1).) “‘Aggrieved Employees’ means all individuals who worked for Defendant ASMS, LLC in California and who were classified as non-exempt employees at any time during the time period of March 11, 2023, and the earlier of 120 days after March 11, 2025 or the date the Court approves the PAGA Settlement.” (Id., at § I, ¶ 1.) “[T]he Aggrieved Employees consist of approximately 196 employees who worked approximately 4,201

pay periods during the PAGA Period.” (Id., at ¶ 3.) ASMS provided a spreadsheet with identifying data and a list will be provided “to the Settlement Administrator to facilitate the Individual PAGA Payments to the Aggrieved Employees.” (Id., at ¶ 2.)

The settlement contains an escalation clause, stating that because “[t]he PAGA Settlement is based on an estimate that there are 4,201 pay periods worked by aggrieved employees during the PAGA Period as of March 11, 2025[, i]f the number of pay periods worked by aggrieved employees during the PAGA Period exceeds 4,621 (i.e., 10 % more than the number of pay periods estimated as of March 11, 2025), then, at Defendant’s option, the PAGA Settlement will either increase by 1 % for every 1 % over the 10 % threshold, or the PAGA Period will end on an earlier date, e.g., the date prior to when the number of pay periods exceeds 4,621.” (Ex. A, Settlement Agreement, § III, ¶ 9.)

Under the settlement, “[w]ithin 30 (thirty) calendar days of the Effective Date, Defendant will provide to the Settlement Administrator (i) the Gross Settlement Amount and (ii) the Aggrieved Employee List.” (Ex. A, Settlement Agreement, § III, ¶ 10c.) Thereafter, “[w]ithin fourteen (14) calendar days after receipt of the Gross PAGA Settlement Amount from Defendant, the Settlement Administrator will issue to each Aggrieved Employee a check for their Individual PAGA Payment,” in addition to paying “the Attorneys’ Fees, the Attorneys’ Expenses, Plaintiff’s enhancement award, the portion of the PAGA Payment allocated to the LWDA, and the Settlement Administration Expenses.” (Id., at ¶¶ 10d, f.) A payment for settlement administration expenses “shall include the cost of the Settlement Administrator selected by the Parties to administer the settlement in the amount not to exceed \$7,000.00.” (Id., at ¶ 4d.) However, as noted by Mooradian, the settlement administration expenses have since been updated to reflect \$4,500, “which in turn increases the net balance of the Gross PAGA Settlement Amount to be paid to the LWDA and Aggrieved Employees.” (Mooradian Decl., ¶ 18, fn. 4.) Given that the settlement agreement contains language stating, “not to exceed,” the Court finds this reasonable.

The settlement is properly non-reversionary. (Ex. A, Settlement Agreement, § III, ¶ 10d [“Funds represented by settlement checks returned as undeliverable and those settlement checks remaining un-cashed for more than 180 days after issuance shall be distributed to the California State Controller Unclaimed Property Fund to be held pursuant to the Unclaimed Property Law, California Civil Code § 1500 et seq., for the benefit of those members of the Aggrieved Employees who did not cash their

checks.”.) Additionally, the settlement releases all claims of “[t]he State of California, the LWDA, and the Aggrieved Employees, including Plaintiff,” while explicitly explaining it will not “release any claim that is not a PAGA Claim.” (Ex. A, Settlement Agreement, § III, ¶ 5a)

The parties also “expressly consent” to the Court’s jurisdiction, stating that “[a]fter approval of this settlement, the Court will have continuing jurisdiction pursuant to California Code of Civil Procedure section 664.6 solely for purposes of addressing: (i) the interpretation and enforcement of the terms of the Settlement, (ii) settlement administration matters, and (iii) such post-Judgment matters as may be appropriate under court rules or as set forth in this PAGA Settlement Agreement.” (Ex. A, Settlement Agreement, § III, ¶ 8.)

The Court finds that the \$107,500.00 settlement is fair and reasonable in light of the above and the “Parties engag[ing] in a mediation session before mediator and attorney Jeffrey Fuchsman. Prior to mediation, Plaintiff obtained, through informal discovery: Plaintiff’s timecards, wage statements, and personnel file; timecards and wage statements for the Aggrieved Employees; Defendant’s corporate policies, including those related to timekeeping, compensation, meal and rest periods, and reimbursement of incurred employee expenses; an accounting of employees and pay periods from the beginning of the PAGA Period to approximately the date of mediation. Through arms-length negotiations, the Parties represented by their respective counsel recognized the substantial risk of an adverse result in the PAGA Action and reached an agreement to settle the PAGA Action which led to the signing of a Memorandum of Understanding.” (Ex. A, Settlement Agreement, § II, ¶ 3; see *Kullar v. Foot Locker Retail, Inc.*, supra, 168 Cal.App.4th at p. 130 [“The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement.”].)

Conclusion

Based on the foregoing, the motion for an order approving settlement of claims brought pursuant to the Private Attorneys General Act is GRANTED.

The Court will sign the judgment. The Court retains jurisdiction over this matter pursuant to Code of Civil Procedure section

664.6.

Plaintiffs

are ordered to give notice of this Order.

DATED: July 17, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court

[1] Plaintiffs' notice was filed on March 11, 2024, and pursuant to LWDA's website, "[f]or PAGA notices filed before June 19, 2024: 75% of the recovered penalties go to LWDA and 25% go to the aggrieved employees." (Private Attorneys General Act (PAGA) Frequently Asked Questions, California Labor and Workforce Development Agency <<https://www.labor.ca.gov/resources/paga/paga-faqs/>> [as of July 16, 2026]; see also Lab. Code, § 2699, subd. (m).)